TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 834]

ARKANSAS

RESERVING PUBLIC LANDS FOR FOREST-MANAGEMENT PURPOSES

Whereas the purpose of the act of March 29, 1944, 58 Stat. 132 (16 U. S. C. 583, 583a–1), is, in part, to promote sustained-yield forest management in order thereby to stabilize communities, forest industries, employment, and taxable forest wealth, and the act provides for the sale of timber and other forest products on federally owned or administered forest lands in accordance with the provisions of sustained-yield management formulated or approved as provided therein; and

Whereas the act of July 31, 1947, 61 Stat. 681 (43 U. S. C. 1185–1187), provides, under the conditions therein stated, for the disposal of materials, including timber, on the public lands of the United States; and

Whereas the public lands in the townships described below, situated in Baxter, Cleburne, Conway, Fulton, Independence, Izard, Lawrence, Madison, Marion, Newton, Pope, Randolph, Searcy, Sharp, Stone, Van Buren, and Washington Counties, Arkansas, have been found to be chiefly valuable for timber production and other purposes mentioned in said acts; and

Whereas a district office of the Bureau of Land Management has been established at Russellville, Arkansas, to facilitate the sale of timber in accordance with the principles of sustained-yield forest management;

Now, therefore, by virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights and to the provisions of existing withdrawals, the public lands in the following-described areas are hereby withdrawn from all forms of appropriation under the public land laws, except the mining and mineral-leasing laws and the laws authorizing the disposal of timber and other materials, and reserved under the jurisdiction of the Secretary of the Interior in furtherance of the purposes and objectives of said acts of March 29, 1944, and July 31, 1947:

FIFTH PRINCIPAL MERIDIAN

Tps. 19 and 21 N., R. 1 W.
Tps. 19, 20 and 21 N., R. 2 W.
Tps. 17 to 21 N., R. 3 W.
Tps. 16 to 21 N., R. 4 W.
Tps. 11, 12, 14 to 21 N., R. 5 W.
Tps. 11 to 21 N., Rs. 6 to 8 W.
Tps. 10 to 21 N., R. 9 W.
Tps. 11 to 21 N., R. 10 W.
Tps. 11 to 15 and 18 to 21 N., R. 11 W.
Tps. 11 to 15, 19, 20, and 21 N., R. 12 W.
Tps. 9, 10, 12 to 16, 20 and 21 N., R. 13 W.
Tps. 10 to 16, 20 and 21 N., R. 14 W.
Tps. 9 to 14, 17, 18, 20 and 21 N., R. 15 W.
Tps. 10 to 14, 17, 20, and 21 N., R. 16 W.
Tps. 11 to 14, 16, 20, and 21 N., R. 17 W.
Tps. 15 and 16 N., R. 18 W.
T. 16 N., R. 19 W.
Tps. 15 and 16 N., Rs. 20 to 24 W.
Tps. 13, 14, and 15 N., R. 25 W.
Tps. 14, 15, and 16 N., R. 26 W.
Tps. 14 and 15 N., Rs. 27 to 29 W.
Tps. 13, 14, and 15 N., R. 30 W.
Tps. 13 and 14 N., Rs. 31 to 33 W.

The areas described contain approximately 112,000 acres of public lands.

OSCAR L. CHAPMAN,
Secretary of the Interior.

MAY 23, 1952.

[F. R. Doc. 52–5943; Filed, May 29, 1952; 8:46 a. m.]

[Public Land Order 835]

ALASKA

REVOCATION OF EXECUTIVE ORDER NO. 8480 OF JULY 12, 1940, AMENDMENT OF PUBLIC LAND ORDER NO. 571 OF MARCH 9, 1949, AND RESERVATION OF PORTIONS OF RELEASED LANDS FOR TOWN-SITE PURPOSES

By virtue of the authority vested in the President by the Act of March 12, 1914, 38 Stat. 305, 307 (48 U. S. C. 303), and otherwise, and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

1. Executive Order No. 8480 of July 12, 1940, excluding a tract of public land in Alaska from the Chugach National Forest, and reserving it for town-site purposes in connection with the construction and operation of railroad lines, is hereby revoked: *Provided*, That such revocation shall not have the effect of returning any of such lands to a national forest status.

2. Public Land Order No. 571 of March 9, 1949, which (1) set aside for the use of the Alaska Railroad as a railroad reserve two parcels of land reserved by the said Executive Order No. 8480 for town-site purposes, and (2) modified that Executive Order to the extent necessary to permit the use of the lands as a railroad reserve, is hereby amended by withdrawing the lands described therein from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, without changing the status of such lands as a railroad reserve.

3. The tract of land identified as U. S. Survey No. 2882, Alaska, containing 21.120 acres, plat of survey accepted July 6, 1949, within the area reserved by said Executive Order No. 8480, is hereby withdrawn from all forms of appropriation under the public-land laws and reserved for railroad town-site purposes: *Provided*, That such reservation of Lots 1 to 6, inclusive, of Block 3, as shown on the said Survey No. 2882, shall be subject to the use of such lots by agencies of the Federal Government.

4. The following-described tracts of land within the area reserved by said Executive Order No. 8480 are hereby withdrawn from settlement, location, sale, or entry, and reserved for classification:

Tract No. 1. Beginning at the point of intersection of the south branch of the Portage River with the east boundary of Parcel 1, Alaska Railroad Reserve established by Public Land Order No. 571 of March 16, 1949, being located 1,320 feet on the east side of the center line of the present main line of the Alaska Railroad; thence east along the south bank of the south branch of the Portage River to its junction with the main stream of the Portage River; thence continue east along the south bank of the Portage River to its intersection with the easterly boundary of the Turnagain Arm Townsite Reserve, established by Executive Order 8480 of July 12, 1940; thence south along the easterly boundary of the Turnagain Arm Townsite Reserve to its intersection with an unnamed slough at a distance of approximately 3,200 feet; thence west along the north bank of this unnamed slough to its intersection with the east boundary of the above-mentioned Alaska Railroad Reserve; thence north along this boundary to the point of beginning. The area as described contains approximately 255 acres.

Tract No. 2. Beginning at Corner 1 of U. S. Survey No. 2882, located 50 feet west of the center line of the highway; thence south along the right-of-way of highway to its intersection with the south branch of the Portage River, a distance of approximately 4,585 feet; thence west along the north bank of the south branch of the Portage River to a point 660 feet from the highway right-of-way measured at a 90 degree angle to the right-of-way; thence north parallel to the 660 feet from the highway right-of-way for a distance of approximately 4,585 feet; thence east 660 feet to the point of beginning. The area described contains approximately 69.5 acres.

The remaining lands released from withdrawal by the revocation of Executive Order No. 8480, which lands are unsurveyed, shall, at 10:00 a. m. on the 35th day after the date of this order, subject to valid existing rights and the provisions of existing withdrawals, be opened to settlement under the homestead laws and the homesite act of May 26, 1934, 48 Stat. 809 (48 U. S. C. 461), only, and to those forms of appropriation only by qualified veterans of World War II for whose services recognition is granted by the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, and by other qualified persons entitled to credit for service under the said act. Commencing at 10:00 a. m. on the 126th day after the date of this order, any of such lands not settled upon by veterans or other persons entitled to credit for service shall become subject to settlement and other forms of appropriation by the public generally in accordance with the appropriate laws and regulations.

Applications for these lands which shall be filed in the Land Office, Anchorage, Alaska, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations to the extent that such regulations are applicable. Applications under the home site or homestead laws shall be governed by the regulations contained in Parts 64 to 66, inclusive, of Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Anchorage Alaska.

OSCAR L. CHAPMAN,
Secretary of the Interior.

MAY 23, 1952.

[F. R. Doc. 52–5945; Filed, May 29, 1952; 8:46 a. m.]